

9.	25CV2707	HIGH HILL RANCH v. REINDERS
Motion to Compel Arbitration		

Fudge Factory moves for an order to compel arbitration on the grounds that the allegations made in High Hill Ranch’s complaint (the “HHR Complaint” and Fudge Factory’s Request for Judicial Notice (“RJN”) No. 4) relate to topics covered in the Parties’ 2002 settlement agreement (the “2002 Agreement”) which contains a mandatory arbitration provision.

Requests for Judicial Notice

Defendant requests that the Court take judicial notice of several court records. Pursuant to Evidence Code § 450 *et seq.*, Defendant’s requests are granted. Plaintiff also requests that the Court take judicial notice of various court records. Pursuant to Evidence Code § 450 *et seq.*, Plaintiff’s requests are granted.

Motion

After reviewing all the pleadings, the Court relies on the arguments made in Fudge Factory’s Reply in granting the motion to compel arbitration.

In its 2022 Order, this Court expressly determined that “the terms and topics of the 2002 [S]ettlement [A]greement expressly included . . . [removal of] any obstructions, barriers which impair the ordinary flow of traffic and/or pedestrians within the easement to or from the parties; [and] parking facilities or businesses.” Fudge Factory-RJN (“FF-RJN”) RJN No. 3, pp. 28–29. In the 2022 Order, this Court specifically found that the arbitration provision “is not limited to the disputes that arose at the time of the settlement and includes future events arising from or related to the terms or topics of the Settlement Agreement [emphasis added].” FF-RJN No. 3, pp.28– 29. The December 31, 2012, expiration date at paragraph 3 of the 2002 Settlement Agreement does not apply, and in any event the 2010 Judgment provides that disputes are to be resolved in arbitration. FF-RJN No. 7, p. 4, ¶ 3.

The Court in its 2022 Order emphasized that “[h]aving alleged all defendants acted as agents of one another, [a plaintiff] is bound by the legal consequences of [its] allegations.” RJN No. 3, pp. 27. The Court further noted that Jerry Visman (now deceased) doing business as High Hill Ranch was the sole member, agent for service of process, and CEO of High Hill Ranch, LLC, and that “Defendant High Hill Ranch, LLC is at the very least a mere continuation of the High Hill Ranch proprietorship.” RJN No. 3, pp. 24–25. Thereon, this Court applied the principle from *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 615 that “it would be unfair to defendants to allow [plaintiff] to invoke agency principles when it is to his advantage to do so, but to disavow those same principles when it is not.” Those same agency principles remain applicable now and it would be unfair to allow High Hill to invoke the arbitration provisions when it wants to and then oppose arbitration on the same grounds when it chooses.

In its 2022 Order, the Court sent all of Fudge Factory's claims, including those against High Hill Ranch, to arbitration. FF-RJN No. 7, p. 25-27, ¶ 2 ("High Hill Ranch, LLC is at the very least a mere continuation of the High Hill Ranch proprietorship").

The Court also agrees that if this case is not sent to arbitration, there is potential for inconsistent judgments.

Stay

Once a court determines that a dispute is arbitrable, California law directs courts to stay the proceedings. *See* Code Civil Proc., § 1281.4. Fudge Factory argues, as such, any further proceedings on the HHR Complaint must be stayed "until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." Code Civ. Proc. § 1281.4.

TENTATIVE RULING #9: MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.